Judge Says California Must Keep Counting Ballots as They Are

From: PBS NewsHour Mined: 2026-10-30 3 min read

A **federal** judge in Los Angeles has said California must keep handling **ballots** the way it already does. On Wednesday, Judge David O. Carter turned down a request from the Trump administration. The administration wanted the state to stop processing **ballots** from up to 20,000 people it said were likely **noncitizens**. More than 3.7 million people had already voted in California. The state mails **ballots** to all 23 million **registered** voters. More than 500,000 **ballots** had already been processed. Once a ballot is taken out of its envelope, county officials said, it can no longer be matched to its voter. Carter wrote that separating the **ballots** now would cause chaos and **disrupt** an election already underway. He said it could take away votes from United States citizens. The administration had sued in mid-October. It said California missed a 48-hour deadline to check a list of 20,000 people. Justice Department lawyers said they would **appeal** right away. Bill Essayli, a First Assistant U.S. Attorney, said separating a ballot would not stop it from being counted later.

Word Treasure

federal -- Relating to the national government of the United States.
ballots -- Papers or forms voters use to mark their choices.
noncitizens -- People who are not citizens of the country.
registered -- Officially signed up to vote.
appeal -- To ask a higher court to look at a decision again.
disrupt -- To break up or mess up something that is already happening.

Background you need

California mails a ballot to each registered voter, and county workers process the ballots as they arrive.

Once a ballot is taken out of its envelope, it cannot be matched back to its voter, so separating ballots later is difficult.

A judge can decide whether a state must keep its current way of handling ballots during an election that is already underway.

Break it down

WHO: Judge David O. Carter, the Trump administration, California county officials and Justice Department lawyers

WHAT: Carter turned down a request to stop processing ballots from up to 20,000 people the administration said were likely noncitizens

WHERE: In California, in a case decided by a federal judge in Los Angeles

WHY: Because separating the ballots now would cause chaos, disrupt an election already underway, and could take away votes from United States citizens

Why it matters

Rules about counting votes matter to your family because they help make sure every citizen's vote counts fairly in an election.

Test what you remember

1. Who turned down the request from the Trump administration?

- (A) County officials
- (B) Bill Essayli
- (C) Judge David O. Carter
- (D) Justice Department lawyers

2. What did the administration want the state to stop processing?

- (A) Ballots mailed to registered voters
- (B) Ballots already taken out of their envelopes
- (C) All ballots in California
- (D) Ballots from up to 20,000 people it said were likely noncitizens

3. Why did Carter say separating the ballots now would be a problem?

- (A) It would take away votes from noncitizens
- (B) It would miss a 48-hour deadline
- (C) It would cause chaos and disrupt an election already underway
- (D) It would stop ballots from being counted later

4. What happens once a ballot is taken out of its envelope, according to county officials?

- (A) It can no longer be matched to its voter
- (B) It is counted right away
- (C) It is sent back to the voter
- (D) It is set aside for later

5. What did Justice Department lawyers say they would do?

- (A) Wait until the election ends
- (B) Check the list again
- (C) Stop processing ballots
- (D) Appeal right away

6. What did Bill Essayli say about separating a ballot?

- (A) It would not stop it from being counted later
- (B) It would cause chaos
- (C) It would take away citizens' votes
- (D) It would disrupt the election

Answer key (try the quiz first!): 1: C 2: D 3: C 4: A 5: D 6: A

Questions to think about

1. Judge David O. Carter: He says separating the ballots now would cause chaos, disrupt an election already underway, and could take away votes from United States citizens.

2. The Trump administration: It wanted the state to stop processing ballots from people it said were likely noncitizens, saying California missed a deadline to check a list of 20,000 people.

3. Bill Essayli: He says separating a ballot would not stop it from being counted later.

MY THOUGHTS (at least 20 words):